

Master Software as a Service (SaaS) Agreement

Hospitality QR Order, Pay & Kitchen Workflow Technology

SCHEDULE 1: COMMERCIAL PARTICULARS

SERVICE PROVIDER ("PROVIDER")

Marco Panichi (Trading as SmartMenu Australia)

ABN: [Insert Your ABN Here]

Email: contact@smartmenu.com.au

CLIENT / VENUE ("CLIENT")

[Client Business Name / Entity Pty Ltd]

Trading As: [Venue Name, e.g. The Beaufort]

ABN: [Client ABN] • Venue Address: [Venue Address]

INITIAL SETUP & LAUNCH FEE

\$1,650.00 AUD + GST

One-time upon signing

MONTHLY SUBSCRIPTION FEE

\$99.00 AUD / mo + GST

Includes up to \$25k/mo volume

INITIAL TERM & NOTICE

12 Months

30-day written notice thereafter

1. PROVISION OF SERVICES

1.1 The Provider grants the Client a non-exclusive, non-transferable license to access and use the SmartMenu digital ordering, payment processing (Apple Pay / Google Pay / EFTPOS via Stripe), and kitchen workflow software (the "Service") for the venue specified above.

2. HARDWARE & THERMAL PRINTER TERMS (EXPLICIT DISCLAIMER)

2.1 **Hardware Exclusions:** The Client acknowledges that physical hardware (including but not limited to thermal receipt printers, kitchen display tablets, router equipment, and acrylic/wooden stands) is **NOT** provided free of charge under this Agreement.

2.2 **Bring Your Own Hardware (BYOD):** The Service is designed to integrate with the Client existing supported Epson/Star Micronics thermal printers and Android/iOS tablets at \$0 additional hardware charge.

2.3 **Hardware Purchases:** Any new pre-configured hardware requested by the Client (e.g. Star CloudPRNT thermal printers at **\$450.00 AUD + GST per unit**) will be invoiced separately and must be paid prior to hardware dispatch.

3. PAYMENTS & MERCHANT GATEWAY

3.1 The Client will establish and maintain its own Merchant Account (e.g., Stripe Australia). 100% of customer order funds settle directly into the Client designated Australian bank account. The Provider is not a payment facilitator or financial custodian and holds no customer funds.

4. FEES, VOLUME TIERS & PRICE STRUCTURE EVOLUTION

4.1 **Fixed Rate Guarantee:** The agreed Monthly Subscription Fee (\$99.00 AUD/mo) is guaranteed and locked for the duration of the Initial 12-Month Term.

4.2 **Baseline Volume Cap:** The introductory flat monthly fee applies to venues processing up to **\$25,000.00 AUD in Gross Monthly Order Volume ("GMV")** through the platform per calendar month.

4.3 **High-Volume Tiers & Fee Adjustments (Right to Introduce Volume Fees):** Following the expiration of the Initial Term, or in the event the Client GMV exceeds \$25,000.00 AUD/month on a continuous basis, the Provider reserves the right, upon providing **thirty (30) days written notice**, to:

- Transition the venue to the appropriate Volume Tier (e.g., Pro Tier at \$149.00 AUD/mo for up to \$60k/mo GMV); or
- Apply a nominal technology volume fee (not to exceed **0.75%**) exclusively on the incremental GMV exceeding the baseline \$25,000.00 AUD threshold.

In compliance with Australian Consumer & Commercial Law, if the Client does not agree to a notified fee adjustment, the Client may terminate this Agreement without penalty prior to the effective date of the change.

5. TERM, RENEWAL & TERMINATION

- 5.1 **Term:** This Agreement commences on the Commencement Date and continues for the Initial Term of twelve (12) months. Thereafter, it automatically renews on a month-to-month basis.
- 5.2 **Termination for Convenience:** Following the Initial Term, either party may terminate this Agreement by providing thirty (30) days prior written notice.
- 5.3 **Termination for Cause:** Either party may terminate immediately if the other party commits a material breach of this Agreement that remains uncured for fourteen (14) days following written notice.

6. INTELLECTUAL PROPERTY & DATA OWNERSHIP

- 6.1 **Software IP:** The Provider retains all worldwide right, title, copyright, and intellectual property in the SmartMenu software, source code, designs, algorithms, and documentation.
- 6.2 **Client Data:** The Client owns all rights to its customer lists, menu data, trademarks, trade names, and branding assets. The Provider will never sell or monetize Client customer data to third parties.

7. SERVICE AVAILABILITY, UPTIME & MAINTENANCE

- 7.1 The Provider will use commercially reasonable efforts to maintain a 99.5% service availability uptime, excluding scheduled maintenance or telecommunications outages outside the Provider direct control.

8. LIMITATION OF LIABILITY & INDEMNITY

- 8.1 To the maximum extent permitted by the *Competition and Consumer Act 2010 (Cth)* (Australian Consumer Law), the Provider aggregate total liability arising out of or related to this Agreement is strictly limited to the total fees paid by the Client to the Provider in the three (3) months preceding the incident.
- 8.2 Neither party shall be liable for indirect, incidental, special, or consequential loss of profits, loss of data, or business interruption.

9. AUSTRALIAN GOODS & SERVICES TAX (GST) & GOVERNING LAW

- 9.1 All fees quoted are in Australian Dollars (AUD) and are exclusive of GST unless expressly specified. GST will be added to invoices in accordance with Australian taxation legislation.
- 9.2 **Governing Law:** This Agreement is governed by the laws of **Western Australia (WA)**, and the parties submit to the non-exclusive jurisdiction of the courts of Western Australia.

EXECUTION & ACCEPTANCE

By signing below, the authorized representatives of the parties agree to be bound by all terms and conditions of this Agreement as of the Commencement Date.

SIGNED FOR & ON BEHALF OF THE PROVIDER:

Name: **Marco Panichi**

Title: Principal / Managing Director

Signature: _____

Date: ____ / ____ / 2026

SIGNED FOR & ON BEHALF OF THE CLIENT:

Entity Name: **[Client Business Name]**

Authorized Name: _____

Title / Position: _____

Signature: _____

Date: ____ / ____ / 2026